Note: Independence, MO (Eastgate) TRO, hearing Oct 22, 2026. As of Thu Oct 8, 2026, ~11:15 PM ET

Nebius Capacity & Power. Public sources only; nobody contacted. Tags: R = Reported, D = Derived, E = Estimated. [n] = source list at the bottom.

Bottom line: Independence carries 0 MW billed at YE26 and only 4.6 base / 9.3 high MW-yr of FY27 billed IT [D, 9], 0.9% / 1.4% of the locked 531.8 / 659.2 [D]. Even a TRO that is granted and sustained only moves Phase 1 (~Q3'27) timing, so it cannot touch YE26 and caps the FY27 hit at those MW-yr. No lock changes.

1. The case and the TRO (as reported)

Item	Detail	Tag	Src
Plaintiffs	Independence GUARD Alliance (Guardians United Against Reckless Development) + Bly Road / Little Blue Valley residents; counsel incl. Steve Jeffery (Jeffery Law Group)	R	1, 3
Defendants	City of Independence; Missouri ADC Holdings LLC (Nebius subsidiary, developer); Independence Power Partners LP (Blue Valley generator)	R	1, 3
Court / filed	Jackson County Circuit Court; 16-count, 52-page petition filed Aug 2026 with TRO + preliminary-injunction motion. Case number n/d (not in press; Case.net not checked)	R; n/d	3, 4, 5
Claims	Zoning, Sunshine Law and city-charter violations; non-enforcement of noise/hours/truck rules. Alleges 2022 rezoning without notice, 8 NDAs on power deal, >$150B tax-abated bond authority. City FAQ: site already zoned, no rezoning needed	R (allegations)	3, 4, 6
Relief sought	Pause construction; block further city bond issuance	R	4
Hearing	Thu Oct 22, 2026, 9:00 AM CT (10:00 AM ET), Eastern Jackson County Courthouse, Independence: plaintiffs' TRO motion AND defendants' motion to dismiss; evidence + witnesses	R	1, 2
Bond	A TRO may require a plaintiff bond; if plaintiffs cannot post it, no TRO issues and the suit continues. GUARD founder: "good chance" of TRO, "also a chance we won't"	R	2
Responses	Nebius: "cannot comment on pending litigation… committed to complying with all applicable laws". City: disagrees, no further comment	R	1, 2, 4

What would change our view: (1) A TRO or PI that runs past ~Q1'27 or blocks IPP's Blue Valley work (IPP is a named defendant), which would push Phase 1 and the Oct 2027 Ph1 COD [6, 8]. (2) Any Nebius 6-K / Q3 letter naming Independence as a Meta #2 or other contracted site with 1H27 dates, which would raise the MW at stake [10]. (3) A city bond-issuance freeze, if it reaches project financing. Watch: Oct 22 ruling; Q3 letter (late Oct–mid Nov, E).

2. Independence in the locked numbers

Independence in our lock	Value	Tag	Src
YE26 billed IT (no IT before ~Q3'27)	0 MW	D	9
YE26 connected plug (utility feed / shell only, not IT)	100 MW (0–200)	E	9, 10
Energized IT path: Q3'27 base / high (gross ÷ 1.35)	37.0 / 74.1 MW	D on E	9
FY27 avg billed = E_Q3'27 ÷ 8 (1Q lag; only Q3'27 counts)	4.6 / 9.3 MW-yr	D	9
Share of locked FY27 billed 531.8 / 659.2	0.9% / 1.4%	D	9
Q4'27 energized IT exit (FY28 matter) base / high	92.6 / 148.1 MW	D on E	9
Power path: IPL feed from Oct 2026; Blue Valley Ph1 COD Oct 2027	200 / ~200–250 MW	R	6, 7, 8

3. What Oct 22 outcomes would (and would not) change

Oct 22 outcome	Effect on our numbers	FY27 billed base / high (MW-yr)	Tag
TRO denied, or motion to dismiss granted	None. Phase 1 ~Q3'27 holds	531.8 / 659.2 (0 / 0)	D
TRO granted but bond not posted	None (no TRO issues; suit proceeds)	531.8 / 659.2 (0 / 0)	D; R mech.
Short TRO (weeks) in Q4'26	Shell work pauses; YE26 billed still 0. Phase 1 ~Q3'27 likely holds (slack to Blue Valley Oct 2027 COD)	531.8 / 659.2 (0 / 0)	D; timing E
TRO/PI slips Phase 1 by ≥1 quarter (Q3'27 → Q4'27+)	Independence FY27 billed → 0. Worst case for FY27 = full site	527.2 / 649.9 (−4.6 / −9.3; −0.9% / −1.4%)	D
PI until case decided (multi-quarter)	FY27 hit capped as above; risk moves to the YE27 exit 92.6 / 148.1 IT MW (FY28) and the YE26 100 MW connected plug [E]	527.2 / 649.9 (capped)	D

Gap to the 768.75 MW needed at $16M widens only 236.9 → 241.5 base / 109.6 → 118.9 high [D, 9]. Illustrative revenue at the ~$14.5M/IT MW-yr engine rate: ~$67M / ~$134M of FY27 [E, 9].

Sources: [1] KSHB 41, "Hearing set for Oct. 22 on TRO for Nebius data center project" (Oct 8, 2026, 4:15 AM ET) www.kshb.com/news/local-news/hearing-set-for-october-22-on-temporary-restraining-order-for-nebius-data-center-project · [2] FOX4 KC, "Judge could order Nebius to halt data center construction in Independence" (Oct 7, 2026, 3:23 PM ET; upd. 6:23 PM ET) fox4kc.com/news/judge-could-order-nebius-to-halt-data-center-construction-in-independence/ · [3] KSHB 41, "Bly Road residents file lawsuit…" (Aug 2026) www.kshb.com/news/local-news/missouri/jackson-county/independence-guard-alliance-files-lawsuit-to-halt-construction-of-independence-data-center · [4] KCTV5 (Aug 13, 2026) www.kctv5.com/2026/08/13/lawsuit-aims-block-construction-independence-data-center/ · [5] suedatacenters.org case page (no case no.; Case.net not machine-accessible) suedatacenters.org/lawsuits/independence-missouri-guard-alliance-data-center-lawsuit · [6] City of Independence data-center FAQs www.independencemo.gov/data-center-faqs · [7] Nebius x Independence deck (Jan/Feb 2026) www.independencemo.gov/sites/default/files/2026-02/Nebius%20x%20Independence%2C%20MO.cleaned.pdf · [8] MO DED groundbreaking (May 12, 2026) ded.mo.gov/press-room/nebius-breaks-ground-gigawatt-scale-ai-factory-independence ; KC Star / citizenportal on Blue Valley (via owned_campus_power_path.md) · [9] Team files: final_billed_vs_connected.xlsx (Final_Table row 7, Quarterly_IT row 3; locked Oct 8); nebius_model.xlsx v0.9e Judge_Slide · [10] owned_campus_power_path.md §1; site_verification.md §2; site_tracker_wed.xlsx; unseen_capacity.md; Nebius FY25 20-F (Meta #2 1H27)